



GOLD MEDAL INJURY LAW

WASHINGTON

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LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FIRST CLASS MAIL, FASCIMILE AND EMAIL

{{insurance2.insurer.name}}

Attn: {{insurance2.adjuster.name}}

{{insurance2.insurer.address1}}

{{insurance2.insurer.address1city}}, {{insurance2.insurer.address1state}}

{{insurance2.insurer.address1zip}}

F: {{insurance2.adjuster.fax1}}

E: {{insurance2.adjuster.email1}}

Re: Our Client(s): {{fullname}} and {{insurance2.p1.name}}
Your Insured: {{insurance2.insured.name}}
Claim No.: {{insurance2.claimnumber}}
Date of Loss: {{intake.incidentDate| longDate}}

Dear Mr./Ms. {{insurance2.adjuster.lastname}},

In response to your most recent offer to settle for \$_____ and \$_____, please allow this letter to serve as confirmation of our client's declination.

Your insured's negligence, as indicated by the facts of the case, caused this accident that resulted in serious medical issues that continue to plague our client to this day.

As a reminder, our client(s) suffered from the following injuries as a result of your insured's negligence:

At the time of the accident, our client(s) was completely unprepared for the impact with his head facing straight forward while his body struck the side door. Immediately, he experienced neck pain, low back pain, and headache. He/She felt being dazed, and felt an increase of these symptoms.

Kindly take note of the fact that our client(s) has significant findings on his/her cervical, lumbar, and shoulder MRI. His/Her cervical MRI shows annular tear at C6-C7, disc bulges at C2-C3 (1 to 2mm), C4-C5 (2mm), C6-C7 (2mm), disc protrusions at C5-C6 (3 to 4mm), C7-T1 (2 to 3mm), T1-T2 (3mm), T2-T3 (3 to 4mm) with spinal canal stenosis and foraminal narrowing at C5-C6. These bulges caused severe pain on his/her neck that radiates to his/her shoulders and arms. His/Her lumbar MRI shows annular tear at L3-L4, disc bulges at L2-L3 (1 to 2mm), L4-L5 (2mm), disc protrusion at L3-L4 (4mm), L5-S1 (3mm) with foraminal narrowing at L3-L4, L4-L5 and L5-S1. These back injuries had caused mid and low back pain that extend to his hamstrings bilaterally. In addition, his/her shoulder MRI shows an acute high grade partial tear and a bone contusion that caused a lot of right shoulder pain.

Our client(s) describes pain as aching, sharp, and tingling with pain intensity of 8-9 that occurred 80% to 100% of the time. Pain was aggravated by bending, twisting, straining, coughing, and lifting while his headache was aggravated by stress and pain. Pain was severe that it prohibits activity thus client has had problems with eating, standing, nervousness, and sleeping. He/She/They was/were not able to perform normal work activities because of pain and stress. Please take into consideration that our client has sustained these life-changing injuries because of this accident.



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Taking **{{fullname}}** and **{{insurance2.p1.name}}** injuries and damages into consideration, your policy limits are highly inadequate in comparison to other verdicts and settlements for similar injuries. Below are examples of other verdicts:

1. **Austin vs. Contrast Lighting Services Inc- Verdict - \$650,000.00 - MRI of the cervical spine showed C5-C6 central disc bulge resulting from a car wreck.**
2. **Toney vs. Magana- Verdict - \$500,000.00 a lumbar MRI was the most significant evidence for a disc bulge at C4-C5, which was the basis for the verdict.**

Those cases both involved Plaintiffs that suffered from only one level of disc injuries. Unlike the above cases, **{{fullname}}** and **{{insurance2.p1.name}}** has actually injured multiple disc levels, his/her damages are therefore greater and would foreseeable lead to larger verdicts than those seen above.

Our client is understandably upset at this whole ordeal and would like to put this behind her/him/them and move on with his/her/their life/lives. Although your policy limit is woefully inadequate, he/she/they is willing to accept it at this time in full settlement of his/her/their case against your insured.

This is a case where the damages will far exceed the policy limit. We will file suit against your insured and obtain a judgment far in excess of the policy limit. A jury would not hesitate to award money damages in the \$500,000.00 to \$650,000 range based on the above facts. We would prefer to resolve the case for the policy limit and not subject your company to an excess verdict.

We do not believe a jury will think your insured's failure to maintain due care and stop in time, impacting our client's vehicle was a small matter. They will not think that failing to compensate **{{fullname}}** and **{{insurance2.p1.name}}** for his/her/their demonstrable injuries is okay, and will award a high amount of compensatory damages here. The entire story will be heard by the jury.

We demand your \$ [REDACTED] which our client has expressly authorized me to accept within the next seven days. We are extending you until 5:00 p.m. Month Day to accept our offer.

We would prefer to resolve the case for the policy limit and not subject your insured to an excess verdict. Thank You for your immediate attention to this matter.

Very Truly Yours,

Andrew Stikovic

**{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}**

AS/ [REDACTED]